

learned friend Lord Cranworth, who is not now here, entertained, during the argument, a very strong opinion. The learned Judges consulted, have come to a clear opinion upon that subject, that the decree is not void, but only voidable; nevertheless, that it is to be avoided when brought under review, and upon objection taken. But with respect to the second point submitted to them, whether or not the Vice-Chancellor's judgment is void, in respect of the Lord Chancellor's authority being null from the beginning of the whole proceedings in the Court of Chancery, I must say that I never from the beginning had the least doubt, and was therefore very little surprised to find the learned Judges declare that the Vice-Chancellor has an entirely independent jurisdiction, and is not in any respect dependent upon the Lord Chancellor, from whom he only receives directions as to what cases he shall entertain and dispose of. That by the Act is the only connection which subsists between the two branches of the Court of Chancery, with the exception of the final enrolment, which requires the previous signature of the Lord Chancellor; but, as plainly as an enactment can speak, the Vice-Chancellor has a substantive and an independent jurisdiction conferred upon him by the very words of the statute; and it is expressly stated in that statute that his decrees shall be decrees of the Court of Chancery, and shall have execution as such. And then follows the only connection established between his proceedings and those of the Lord Chancellor, that there shall be no enrolment of a decree, with the view [793] to further proceedings, without the previous signature of the Lord Chancellor; but the giving of that signature cannot affect the validity of the Vice-Chancellor's decree. Therefore, my Lords, we have now in the first place to declare, agreeing in opinion with the learned Judges, that the interest of the Lord Chancellor rendered his decree voidable, and to declare that that decree is reversed, and we have then to deal with the decree of the Vice-Chancellor (see *post*, p. 808).

Lord Campbell.—I take exactly the same view of this case as do my noble and learned friends, and I have very little to add to their observations. With respect to the point upon which the learned Judges were consulted, I must say that I entirely concur in the advice which they have given to your Lordships. No one can suppose that Lord Cottenham could be, in the remotest degree, influenced by the interest that he had in this concern; but, my Lords, it is of the last importance that the maxim that no man is to be a judge in his own cause should be held sacred. And that is not to be confined to a cause in which he is a party, but applies to a cause in which he has an interest. Since I have had the honour to be Chief Justice of the Court of Queen's Bench, we have again and again set aside proceedings in inferior tribunals because an individual, who had an interest in a cause, took a part in the decision. And it will have a most salutary influence on these tribunals when it is known that this high Court of last resort, in a case in which the Lord Chancellor of England had an interest, considered that his decree was on that account a decree not according to law, and was set aside. This will be a lesson to all inferior tribunals to take care not only that in their decrees they are not influenced by their personal interest, but to [794] avoid the appearance of labouring under such an influence. It is quite clear, likewise, I believe, that the orders of the Vice-Chancellor cannot be in the slightest degree affected by what the Lord Chancellor has done, nor can it be maintained that the Vice-Chancellor was acting merely as the Lord Chancellor's deputy when these orders and decrees were pronounced (*post*, p. 809, and see the next case).

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WILLIAM DIMES,—*Appellant*; the PROPRIETORS of the GRAND JUNCTION CANAL, T. E. SKIDMORE, and Others,—*Respondents* [June 29, 1852].

*Canal Act—Copyhold—Statutory Conveyance—Trustee.*

An Act of Parliament incorporated certain persons as a company for the purpose of making a canal, and gave them powers to purchase and hold lands for the purposes of the Act; it authorized persons to "contract for, sell, and convey their lands," gave a form of conveyance "of all the estate, right, title, and interest" of the person conveying, and enacted that all such contracts, agree-